

Whangarei District Council Meeting Minutes

Date: Thursday, 23 February, 2023
Time: 9:00 a.m.
Location: Council Chamber
Forum North, Rust Avenue
Whangarei

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Scribe

C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

His Worship opened the meeting with a karakia/prayer.

The meeting then observed a moments silence for the flood victims and also for Civic Honour Award recipients, Ben Pitman and Murdoch Ross, who recently passed away.

3. Apologies / Kore Tae Mai

There were no apologies.

4. Public Forum / Huihuinga-a-tangata

Colin Edwards – Parua Bay Wharf – new community proposal
Deborah Mary Jowitt – Parua Bay Wharf – community value.

**Ben Pearce (Hikurangi Conservation Society) forwarded his apologies.*

5. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council Meeting held 15 December 2022

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 15 December 2022, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Extra ordinary Whangarei District Council Meeting held 22 December 2022

Moved By Cr Phil Halse

Seconded By Cr Carol Peters

That the minutes of the Whangarei District Council meeting held on Thursday 22 December having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting, subject to it being recorded, in reference to Item 4.3 - Okara Marina Loan Agreement, that Councillor Halse declared an interest as the council appointed Trustee to the Whangarei Marina Trust. And that Councillor Halse withdrew from discussion and voting on Item 4.3, excepting to provide a brief synopsis of the history of the Town Basin and the Trust.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Community Development Committee Terms of Reference Addition

Moved By Cr Gavin Benney

Seconded By Cr Simon Reid

That the Council approve that the Community Development Committee Terms of Reference be updated to include the Northland Events Centre Trust 2021 (NECT2021), making the NECT2021 accountable to that committee. Events Centre Trust 2021 (NECT2021).

Carried

6.2 Approve parts of the Whangarei District Plan Operative in Part

Moved By Cr Ken Couper

Seconded By Cr Deborah Harding

That Council:

1. Approves amendments to the District Plan resulting from the resolution of appeals ENV-2020-AKL-000131 and ENV-2020-AKL-000132 to Plan Change 109 – Transport (PC109).
2. Approves the affixing of the Council's seal to those parts of the District Plan which are to be amended as attached.
3. Notes that a public notice will be notified in the local newspaper and on the Council's website indicating that amendments have been made to the District Plan.

Carried

6.3 Removal of Gazette Notice - Pt Parihaka Scenic Reserve

Moved By Cr Gavin Benney

Seconded By Cr Nicholas Connop

That the Council in accordance with section 6(3) Reserves Act 1977, amend Gazette Notice 2008 p1645 by deleting the land secondly described in the Second Schedule to that notice and replacing it with the land described as:

Area Description

11.1177 ha Part Parahaki Native Reserve (Record of Title NA6C/357)

Carried

Declaration of Interest:

Cr Olsen declared an interest in regards to Item 6.3.

6.4 Removal of a Public Tree from Deveron Reserve

Moved By His Worship the Mayor

Seconded By Cr Phil Halse

That the Council pursuant to Section 42 of the Reserves Act 1977, approves the removal of the Norfolk Island Pine Tree from Deveron Reserve, Scenic Reserve.

Carried

Cr Yovich requested his vote against be recorded.

6.5 Temporary Road Closure - ANZAC Day

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the ANZAC Commemorations on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Tuesday 25 April 2023

Hannah Street, from Hannah Street/Carruth Street intersection to Hannah Street/Reyburn Street intersection.

Walton Street, from the Pak n Save Carpark to the Walton Street/Cameron Street intersection.

Walton Street/Robert Street intersection (Corner of old ASB Bank & Old Army Hall).

Robert Street/John Street & Robert Street/James Street intersections.

Rathbone Street/Robert Street intersection on both sides of the road.

Laurie Hall Lane and Laurie Hall Park area from the Rathbone Street intersection.

Period of Closure: 4.45am – 8.45am.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

6.6 Appointment of Elected Members-on Northland Regional Council's Whangarei Public Transport Working Party

Moved By Cr Ken Couper

Seconded By Cr Nicholas Connop

That the Council note the appointment of Councillors Simon Reid, Scott McKenzie and Carol Peters as members of the Northland Regional Council's Whangarei Public Transport Working Party.

Carried

6.7 Te Kārearea Strategic Partnership Committee Appointment of hapū Members

Moved By His Worship the Mayor

Seconded By Cr Phil Halse

That the Council:

1. Appoints the following hapū members to the Te Kārearea Strategic Partnership Committee:

Delaraine Armstrong

Len Bristowe

Sandra Hawken

Simon Mitchell

Tame Te Rangi

Nicki Wakefield

Hohipere William.

2. Request Te Huinga select and recommend one further member for appointment by council.
3. Notes the Te Kārearea Strategic Partnership Committee's Terms of Reference will be updated with the hapu members appointed at today's meeting.
4. That Council request staff develop a Selection, Appointment and Remuneration Policy for external appointees on council committees and subcommittees.

Amendment

Moved By Cr Carol Peters

Seconded By Cr Phoenix Ruka

That the Council:

1. Appoints the following hapū members to the Te Kārearea Strategic Partnership Committee:

Delaraine Armstrong

Len Bristowe

Sandra Hawken

Simon Mitchell

Tame Te Rangi
 Sean Walters
 Nicki Wakefield
 Hohipere William.

2. Notes the Te Kārearea Strategic Partnership Committee's Terms of Reference will be updated accordingly.
3. That Council request staff develop a Selection, Appointment and Remuneration Policy for external appointees on council committees and subcommittees.

On the amendment being put Cr Benney called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen			X
Cr Carol Peters	X		
Cr Simon Reid			X
Cr Phoenix Ruka	X		
Cr Paul Yovich			X
Results	9	2	3

**The Amendment was Carried (9 to 2)
 and subsequently Carried
 as the substantive Motion**

Cr Reid requested his vote against the substantive motion be recorded.

6.8 Submission on the Review into the Future for Local Government

Moved By Cr Patrick Holmes

Seconded By Cr Nicholas Connop

That the Council

1. Approve the submission prepared on behalf of Whangarei District Council to the Review Panel into the Future for Local Government.
2. Delegate to the Chief Executive the authority to approve minor amendments to the submission if necessary.

Carried

7. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That Noel Douglas (Chairman), Brian Caulton (Manager) and Sharron Beck (Assistant Manager), be permitted to remain at this meeting after the public have been excluded, because of their know of Item 1.3. Their knowledge from a governance and management perspective, will be relevant and of assistance to Item 1.3.

Carried

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 15 December 2022	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Appointment of Independent Chair for Risk & Audit Committee		
1.2	Credit Assessment Report		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the

proceedings of the meeting in public, are as follows:		
Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.2	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations). To prevent the disclosure or use of official information for improper gain or improper advantage.	Section 7(2)(h) Section 7(2)(i) Section 7(2)(j)

Carried

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a prayer/karakia at 11.33am.

Confirmed this 23rd day of March 2023

His Worship the Mayor Vince Cocurullo (Chairperson